

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF MISSISSIPPI

RECEIVED
MAR 17 2023
United States District Court
Northern District of Mississippi

Matthew O. Reardon

Plaintiff

3:22-CV-050-SA-JMV

State of Mississippi Et Al

Defendants

Emergency
Plaintiff's Motion For Relief From Judgment or Order
With Prayer for Injunction and Protection

Comes Now the Plaintiff, Matthew Reardon, who hereby Moves the Court For Relief from Judgment or order under FRCP Rule 60(b)(1), (3), and (6). Upon good cause and showing, Plaintiff seeks to Reinstate both the State of Mississippi and the Mississippi Department of Mental Health (Hereby referred to as MDMH) as Active Defendants in this Cause of Action. In support of his Motion and Relief requested, Plaintiff offers the following information:

- 1) This Civil Action was Initiated April 6, 2022 Pro Se by an Initial Complaint Filed by Matthew O. Reardon ☐
- 2) Plaintiff Filed a ^{First Amended} Motion to Amend Complaint along with a 74 Page "First Amended Complaint" between the end of May and Beginning of June 2022, however Plaintiff is unable to Access the Docket Report to Ascertain the correct Document Number and Filing Date. Possibly 6/8 or 6/9.
- 3) On or around June 7th, 2022 Plaintiff received Notice of an order by Judge Vinder ~~to~~ For the Clerk to issue the Initial Complaint ☐ to the US Marshalls office for service on Defendants, further stating that a ~~handful~~ of Addressar were still needed for a handful of Defendants

4) It was just days after this order that Notice of service of Process entries began Getting entered on the Docket. It is worth noting that Defendants in their Response in Opposition to Plaintiff's Sworn Declaration and Request for Emergency Injunctive Relief with stipulated Order for Protection [64] Made it a Point to "Deny" the 1st paragraph of Plaintiff's Declaration [60] which used the Verbage "on or around the 1st week of June, 2022" the Honorable Court ordered that service of this lawsuit be made... "id at p. 1" Defendants in [64] go on to state that Plaintiff's "Allegations depart from or are inconsistent with the docket maintained by the Clerk of this Court" "id at 1". First and Foremost, Plaintiff would like to quickly establish a little bit of "house-keeping" if you will. Plaintiff currently sits imprisoned at a prison facility which he has No Access to a Docket and access to practically very little resources. These Defendants, and more importantly their legal counsel, composing Filings, Responses, and Answers, Are very well aware of these Facts along with the information sworn and Attested to under Penalty of Perjury in [Doc 60] that the reasons for Imprisonment result directly from Doing EXACTLY what the FBI told me to do to report a serious matter which was somehow misconstrued through Sheriff East as me intentionally violating my "Banishment" by not having an "Appt" The Call can be viewed here > [HTTPS://REBRAND.LY/FBICALL](https://rebrand.ly/fbicall) The basic Denial of Due Process, to gather the evidence and call witnesses, led to my current "False Imprisonment" which led eventually, when I could communicate out, to the Declaration and Motion for Injunction, [60] Plaintiff stands certain that on or around the date of June 7, 2022 this Court ordered service of the original Complaint [1] and the docket should reflect that, however at that time the Appended Motion had not been approved to take the place of Complaint [1] via its Amended Motion to Amend, Many statements that depart from the truth have been alleged into responses by many of the Defendants in this case which when combined bring consequential harm from an appearance of impartiality with the Court. Plaintiff is not making such assertion at this point and prays he doesn't have to, but Plaintiff will try to point out any incorrect or untrue statements made by any Defendants on this document, as well as respectfully reference any incorrect information on the order by this Court in order for this Court to properly see and understand the major issues that have made the Plaintiff bring these claims before the Court in seeking a Jury Trial. The Defendants undoubtedly will try to unfairly characterize Plaintiff as one that "Frivolously Files Lawsuits" stating that he is some type of "Conspiracy Theorist", however Plaintiff urges this Court to pay No Attention to these untrue insinuations and to stand Independent. Plaintiff has never been sued for Slander, Libel, or Defamation, Not once. Nor Has he ever been charged with Perjury and there is a Reason for that.

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5) On June 28th 2022 Plaintiff was Abruptly Arrested based Upon a Felony Warrant for "Aggravated Stalking" which was served on him by Lafayette County Sheriff's Dept, whom as a Defendant was served process of the initial complaint [1] less than 3-weeks prior. The charge as alleged stemmed from Plaintiff engaging in a Constitutionally Protected Activity as a Citizen Journalist of conducting a "1st Amendment Audit" of Oxford, MS City Hall. Plaintiff made it a practice of traveling around to different areas, which demonstrate a continuing cause of engaging in a constitutionally protected activity which had absolutely nothing to do with Mayor Robyn Tannehill as the Bill of Information falsely claimed. The start to Finish Video of the Audit at Oxford City Hall is > ~~https://rebrand.ly/oxford~~ https://rebrand.ly/oxford-audit

6) Within a Day or two of this Arrest, State of Mississippi (state) Filed the Motion to Dismiss itself. As stated prior, Plaintiff has no Docket list/Report to easily look up Date, however I do remember this 1st Motion Filed. As an individual, independent event, this may have not raised concern, however as a Collective between past "Coincidences" and Future "Coincidences" this can certainly cause concern
* Motion to Dismiss from Federal Suit

7) On July 19, 2022, Through order of the Court [29] The Amended Complaint [30] Replaces the Original Complaint [1] and within a day or two is served to Defendants by US Marshalls Office

8) On July 14, 2022, while incarcerated without bond for the June 28th 2022 charge, Plaintiff files a Motion to Stay Proceedings [33], realizing that his Ability to Perform the basic needs of his Lawsuit was paralyzed due to being incarcerated. This Motion is Denied [40] although additional time to respond is granted. The Court enters Plaintiff's Address as CDC
* Filed with US District Court for M.D. Miss

9) On August 8, 2022 The "State" Filed its Motion for Dismissal on the Amended Complaint [30] based on 11th Amendment [38]

10) MDMH Files the same Motion to Dismiss [43] on October 20, 2022

11) Plaintiff ~~was~~ felt pressured to take advice of his Public Defender and take a Guilty Plea due to a family crisis at home that needed his presence as a Father and Husband. Guilty Plea signed September 30, 2022 which requires Plaintiff to Move out of Lafayette County, MS 65-Days later as part of a Banishment. Must vacate home by November 15th

HTTPS://REBRAND.LY/FBIKALL

12) On October 28th, 2022 Plaintiff communicates with the FBI Field Office in Oxford, MS to report a serious matter with another Law Enforcement Agency. Plaintiff tries to schedule a time, however is told they do walk-ins only. Plaintiff informs Agent/Employee about Banishment and that in trying to play it safe he wanted to convey his official need in commuting there to Lafayette County Sheriff's Office (LCSO) to avoid issues. Upon arriving at FBI office almost 2 hours later, Plaintiff is made to wait... wait... and wait for two and a half hours, as he records all interaction for his own documentation. Finally, after no Agent is alleged to be there, Plaintiff leaves and lets LCSO know he needs to go address issues at the US Attorneys Office after he felt the FBI led him on for nothing. Plaintiff documents all interaction with three Asst US Attorneys whom meet him in the office lobby, and this conversation shows what Plaintiff believes is concerning behavior among "trusted" individuals > HTTPS://REBRAND.LY/USATTYADDRESS

if they just don't give a fuck of care & concern REPRESS

13) On October 31st, 2022, Plaintiff filed a motion to withdraw his guilty plea and take the matter to trial or alternatively to Dismiss. This detailed motion was filed pro-se in circuit court criminal cause LK22-358 after Plaintiff's Public Defender refused to assist or answer further communication.

14) On November 1st, 2022 Plaintiff gets pulled over by two ~~Lafayette~~ LCSO Deputies and Plaintiff gets presented with a signed order authorizing the Deputies to take him into custody based upon a motion filed by the ADA earlier that day to Revoke Plaintiff's sentence/probation and hold him until a revocation hearing. Plaintiff was never given a copy of motion to know what he was being revoked for despite continued requests.

15) On November 3rd, 2022 Plaintiff is brought in shackles to Circuit Court. No Attorney is present for what Plaintiff assumed was a Preliminary Hearing as required. After being told he would have to wait 1-week for a hearing with an Attorney, Plaintiff elects to waive counsel and proceed on his insistence of innocence. Plaintiff then finds out Sheriff East called the FBI to ask if

Plaintiff had an appointment on 10/28/22 and was supposedly advised He didn't. So as a result of this, and an unsubstantiated claim that Plaintiff took his kids Trick-or-Treating on Halloween in a neighborhood on the outskirts of Lafayette County, The Judge Finds that Plaintiff should be Revoked and sentenced to serve 1-Year in Prison. All despite absolutely no due process afforded by never being informed in advance of the reasons, never being allowed to gather evidence and not given any opportunity to call upon witnesses.

15) Plaintiff is returned to Lafayette County Detention Center (LCDC) where he then remains until December 14, 2022.

16) On December 14th, 2022 Plaintiff is transported to CMCF in Rankin County, where he spends 14-Days in a Lock-Down Receiving Unit.

17) On December 28th, 2022 Plaintiff is moved to a "Quickbed Housing Unit."

18) Around January 8th or 10th, 2023, Plaintiff's Housing Unit is placed on Restriction based on a "Fight" between two individuals and no inmate is allowed to purchase or receive commissary items for 3-4 weeks time. This includes paper, pens, stamps, envelopes,

19) On January 17th, 2023, The State's and MDMH's Motions to Dismiss are Granted with the Court claiming "The Court has not been made aware of whether Reardon remains in custody at the Lafayette County Detention Center. However, despite the fact that Reardon has registered to receive electronic notifications of filings in this case, the court hereby, out of an abundance of caution, directs the Clerk of Court to mail a copy of the order and acknowledgment of receipt to Reardon's attention at the Lafayette County Detention Center" [51]

20) Then on January 26, 2023, County Defendants sent a copy of their own motion for judgment on pleadings, which sought dismissal of all County Defendants including Sheriff East, to the LCDC with attention to Plaintiff. [54] P. 4

21) ~~21)~~ Absolutely Zero mail has been forwarded from LCDC, as neither CMCF or GMCF received anything. In addition, Sheriff East is in charge of LCDC. The fact that these parties sought dismissal at a time Plaintiff was incapacitated and transferred away is beyond unconscionable conduct that should be criminally investigated

being that the mere act of tampering with Mail is a Federal Crime in and of itself, with this particular matter involving Legal Correspondence of Time Sensitive Material by the Court needing prompt response for an active Civil Rights Lawsuit. Plaintiff believes without question that Sheriff East had full working knowledge that Plaintiff had been transferred the month prior being that he worked out of the same Facility and was essentially over all operations there as Sheriff.

22) County Defendants Motion for Judgement on Pleadings was Filed on January 11, 2023 [46, 47] and All County Defendants sought Dismissal with Prejudice, County Defendants are Lafayette County Sheriff's Dept, and Sheriff Joseph B East. Attorneys of Record are Marcellus Chamberlain and Jason Marsh with Phelps Dunbar LLP in Jackson, MS. It remains unclear as to why Counsel for County Defendants & Sheriff East in particular would send official Mail Attentioned to Plaintiff to LCDC. ~~Why~~ Why would East Not Say anything to his Attorney unless one or the other were trying to conceal. Most importantly again, Where is all this Legal Mail? Why did this legal Mail requiring prompt response from Plaintiff Never leave LCDC? An investigation into this is most certainly required as Mail tampering in and of itself is a Federal Crime.

23) Oddly enough, the date County Defendants Motion for Judgement closely aligns with Commissary Restriction at CMCF where Plaintiff was unable to purchase any paper, pens, envelopes, or stamps for 3-4 weeks. The 3-4 weeks put the Plaintiff outside the time to respond.

24) Based on admissions during testimony of the 11/3/22 Revocation hearing, Deputy Kandi Beavers testified that Sheriff East called the local FBI Field Office in Oxford, MS on 10/28/2022 to "inquire if Plaintiff had an appointment" which the answer allegedly was "No". The call Recording reflects they don't do Appointments and do walk-ins instead. It is safe to draw the line here that Sheriff East likely played the Motivation here. As such, The 10/28/22 Calls (Incoming/Outgoing) at the FBI Field Office in Oxford MS must be preserved for the purposes of trial.

18 USC 2071
 Plaintiff Seeks Criminal Referral to the
 US Department of Justice

Into Lafayette County, MS ~~at Sta~~
 Lafayette County Sheriff's Dept and Sheriff's Office East

26) Plaintiff Requests Based on all information that this Court, without further delay, grant Plaintiff's Emergency Request for Injunction and enjoin all Defendants into an order of protection in order to protect all interests of Plaintiff and protecting him as a witness.

27) Relief under FRCP Rule 60(b)(3) is warranted in this extraordinary situation, however Relief is also proper under Rule 60(b)(1), and (6).

28) Plaintiff also attaches with this Motion his ~~more~~ Emergency Definitive Statement of Events to demonstrate long-term continuation of the same conspiratorial conduct

Prayer for Injunction and Relief

Plaintiff Matthew Reardon hereby presents his Emergency motion and claims attached ~~verifying~~ Immediate Relief

(Additional evidence at)
 www.lafayette.ms.net

Submitted March 7, 2023

~~Matthew Reardon~~
 Plaintiff

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3-7-23

Subscribed and sworn to before me in my presence, this 7 day of MARCH 2023, a Notary Public in and for the County of Lafayette State of MS
 (Signature) Casey Newell Notary Public
 My Commission Expires Jan 18 2025

